

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:			Formerly Held by: _____	
Date Filed: <u>9/30/15</u>	Annual Fee: \$ <u>1500.00</u>	Prorated Fee: \$ _____	Applicant: <u>Central Enterprises Inc</u>	
Basic Fee: \$ _____	Add'l Dispensing Room Fee: \$ _____	Transfer Fee: \$ _____	Trade Name (dba): _____	
Total License Fee Collected: \$ <u>1500.00</u>	Publishing Fee Collect: \$ <u>100.00</u>	Required Attachments Received: Yes ☒	Premise Address: <u>1701 Garey Avenue</u>	
			Number & Street	
			City	State
			Zip	County
			Mailing Address: <u>8327 Shellback Road</u>	
			Number & Street or P.O. Box	
			City	State
			Zip	
Advertising Dates(4): <u>Oct. 30, 27, 2015</u>			Business Telephone Number: <u>(307) 632-9590</u>	
Hearing Date: <u>Nov 19 2015</u>			Fax Number: <u>(307) 432-0020</u>	
Local Licensing Number: _____			E-Mail Address: <u>sguigo@yahoo.com</u>	
For the license term: <u>upon issuance</u>				
Month Day Year				
Through: <u>March 31 2016</u>				
Month Day Year				
A copy must be immediately forwarded to: State of Wyoming Liquor Division 1520 E 5 th Street Cheyenne WY 82002-0110				
LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.				

FILING FOR	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)	To Assist the Liquor Division with scheduling inspections:
☒ NEW	☒ RETAIL LIQUOR LICENSE	
☐ TRANSFER LOCATION	☐ on-premise only	
☐ TRANSFER OWNERSHIP	☐ off-premise only	
	☐ combination on/off premise	
FILING IN (CHOOSE ONLY ONE)	☐ RESTAURANT LIQUOR LICENSE	☒ FULL TIME (e.g. Jan through Dec)
☒ CITY OF <u>Cheyenne</u>	☐ RESORT LIQUOR LICENSE	☐ SEASONAL/PART-TIME
☐ COUNTY OF _____	☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT	(specify months of operation)
	☐ VETERANS CLUB	from <u>Jan</u> to <u>Dec</u>
	☐ FRATERNAL CLUB	DAYS OF WEEK (e.g. Mon through Sat)
	☐ GOLF CLUB	<u>Monday through Sunday</u>
	☐ SOCIAL CLUB	HOURS OF OPERATION (e.g. 10a - 2a)
	☐ MICROBREWERY	<u>Monday through Sunday 10a to 9 p</u>
	☐ WINERY	
	☐ BAR AND GRILL	
FILING AS (CHOOSE ONLY ONE)	☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	
☐ INDIVIDUAL ☐ LLC		
☐ PARTNERSHIP ☐ LLP		
☒ CORPORATION		
☐ LTD PARTNERSHIP		
☐ ASSOCIATION		
☐ ORGANIZATION		

1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If Winery or Microbrewery, also list manufacturing facility. W.S. 12-4-102(a)(i): (Please submit a drawing of dispensing room)

49' x 21' Room in center of building

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:

1701 Garey Portion of Lot 5, Block 355 OC. Zoned: CBD

2. Do you W.S. 12-4-103 (a) (iii):

(1) OWN the building in which sales room is located?

☐ YES (own)
☒ YES (lease)

(2) LEASE the building in which sales room is located?

(A) DATE lease expires 9/30/2020 located on page 1 Article 1 of lease document.

(B) Provision for SALE of alcoholic or malt beverages located on page 1 paragraph 2 of lease.

NOTE: Attach a true copy of the lease to application. Lease MUST contain provision for SALE OF ALCOHOLIC or MALT BEVERAGES and be valid THROUGH the TERM OF THE LICENSE W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:

5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b)
If "YES", explain: ☐ YES ☒ NO

6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO

7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application?
W.S. 12-4-407(a) W.S. 12-4-413(a) ☐ YES ☐ NO
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license?
W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:

11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) The name and address of the grand lodge or national organization is:
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is:
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.

If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
Sam E. Gileads President	1958	8827 Shellback Road Cheyenne, WY 82009	(307) 632-9980	8	100	YES ☐ NO ☒	YES ☐ NO ☒
Shirley Gileads Secretary	1977	" "	(307) 632-9980	8	0	YES ☐ NO ☒	YES ☐ NO ☒
Sam E. Gileads President	1958	" "	" "	8	0	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

SS.

COUNTY OF Laramie

Before Me, Laura A. Stephens, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for
Laramie County, State of Wyoming, personally appeared

Sam E. Galeotas & Stacey Galeotas name he/she being first duly sworn
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)



My Commission expires: October 13, 2015

Witness my hand and official seal:

Laura A. Stephens
(Notary Public or other officer authorized to administer oaths)

Title Notary Public

Dated: 9-29-2015

REQUIRED ATTACHMENTS:

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Accl.:		

Central Enterprises Inc.
8827 Shellback Road
Cheyenne, WY 82009

September 30, 2015

The Honorable Mayor Richard L. Kaysen
Members of the City Council

2101 O'Neil Ave.
Room 310
Cheyenne, Wyoming 82001

Re: Retail Liquor License Application

Dear Mayor Kaysen & Members of the Cheyenne City Council,

Central Enterprises, Inc. is excited to submit the enclosed Application for the Retail Liquor License currently available.

Our vision is to create a new venue in Downtown Cheyenne providing high-end casual dining. Our product will include private dining services, a tavern, package liquor and catering services. We are especially focus on the delivery of private dining capabilities and catering our product throughout the broader Cheyenne Community. We believe both of these services are under served in the Cheyenne area.

Our plan includes renovating an historic building at the very visible corner of 17th Street and Carey Avenue (1701 Carey). We believe our project will positively contribute to downtown Cheyenne through the beautification of the building, providing an exciting downtown destination and delivering a superior experience for our customers. Our project is consistent with the goals of the City and more specifically the Downtown Development Authority (DDA).

I look forward to speaking with each of you regarding this exciting opportunity. Should you have any questions I can be reached through my office at (307) 632-9590. We look forward to working with you.

Respectfully Yours,



Sam E. Galeotos
President
Central Enterprises, Inc.

Central Enterprises Inc.

Application for Retail Liquor License

Executive Summary

Vision

As the holder of a City of Cheyenne Retail Liquor License, Central Enterprises Inc. will develop a new dining & entertainment venue centrally located in the downtown Cheyenne business district. The establishment will be a place of high activity and will be appealing to a wide range of people. Whether business, family, or casual dining, customers will be able to enjoy upscale meals ranging from steaks, hamburgers, seafood, salads, and other unique food styles.

We will offer a product based on a chef-inspired menu, and high quality private dining rooms for consumers and businesses. We will serve as a premier community gathering establishment. In addition to high-end casual dining, customers will enjoy our tavern, package liquor, catering, and private dining services.

About Central Enterprises

Central Enterprises Inc. is a Wyoming Corporation, in good standing and established in August 2007 (Attachment A).

Financing

The project is being financed through private investment and a line of credit loan facility provided by Wyoming Bank & Trust (WB&T). Please see letter of good standing from WB&T (Attachment B).

Lease

Central Enterprises will lease 9,000 square feet including the main floor and basement located at the historic corner of 17th Street and Carey Avenue (1701 Carey) in downtown Cheyenne. Please see Attachment C for the formal property legal description. The building is owned by Otis Investments, LLC (Lessor). A renovation of the building exterior taking it back to its original state is being completed by Otis Investments. The lease will expressly permit the sale of alcoholic beverages (Attachment G).

Benefits to Downtown Cheyenne

- *Historical Building Renovation* – The project is the foundation for returning this building to its former glory. The building exterior will be restored to its original Art Moderne style with white matte finish terra cotta tiles as described in the National Register of Historic Places.
- *Economic Boost* – Increased foot traffic generated by the project will benefit neighboring retail businesses.
- *Social Boost* – The new establishment will draw customers from a broad range of ages and demographic groups. In turn, this will bring social benefits to the downtown Cheyenne community.
- *Serve As An Anchor* – Renovation of the existing building and development of a thriving business will create motivation for further development in the immediate area.
- *Enhanced Services* – Private dining and catering are seriously underserved in downtown Cheyenne and throughout the broader Cheyenne community.
 - Private Dining - There are very limited opportunities for private dining facilities offered by similar existing businesses, with the only option being

Central Enterprises Inc.
Application for Retail Liquor License
Executive Summary

the use of a hotel meeting room. Families and businesses will be attracted to the finely and uniquely appointed private dining rooms for holiday parties, special occasions, and business functions.

- Catering – Catering for off-site private, corporate and social events throughout the City of Cheyenne will provide a needed service currently lacking within the community. Our catering product will serve as an important form of outreach to the broader Cheyenne community, which will draw increased visitation to our core product in downtown.
- Downtown Development – This project is consistent with, supports, and furthers the initiatives currently being undertaken by the Downtown Development Authority (DDA). This includes beautification of downtown, positioning downtown Cheyenne as a destination, and enhancing the tax base within the DDA district.

Timetable

The scheduled timeframe for the proposed project will be executed in the following manner:

- *Exterior Building Refurbishment (4Q 2015 – 2Q 2016)* – Planning is completed and bids have been received for renovation of the building exterior. Renovation of the exterior building façade will commence no later than year-end 2015. This project phase will include removal of exterior metal awnings & paint, and resurfacing damaged sections of the original glazed tile walls under the awnings and painted areas (Attachment D). The project will be completed during spring 2016 with removal and replacement of two large windows on the west side of the building. Post renovation the building will look as represented in Attachment E.
- *Interior Planning Phase (4Q 2015 – 3Q 2016)* – Interior building design and operational planning will commence during the 4th Quarter of 2015 and is scheduled to be completed early 3Q 2016.
- *Construction Phase (3Q 2016 – 2Q 2017)* – Build-out of the building interior is scheduled for completion at the end of 2Q 2017. A conceptual look of the future floor plan is rendered in Attachment F.
- *Launch Phase (3Q 2017)* – After completion of the construction phase operational, training & logistic planning will commence. Remaining licensing, certificates of operation, and other regulatory approval will be completed with a scheduled launch no later than 3Q 2017.

**Central Enterprises Inc.
Application for Retail Liquor License
Executive Summary**

Attachment A – Certificate of Good Standing

**STATE OF WYOMING
Office of the Secretary of State**

I, EDWARD F. MURRAY, III, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

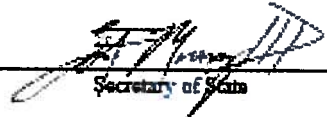
**Central Enterprises, Inc.
is a
Profit Corporation**

formed or qualified under the laws of Wyoming did on August 31, 2007, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number 2007-000542742.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 29th day of September, 2015 at 3:57 PM. This certificate is assigned 016610923.




Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <http://wybiz.wy.gov> and following the instructions displayed under Validate Certificate.

**Central Enterprises Inc.
Application for Retail Liquor License
Executive Summary**

Attachment B – Letter of Good Standing

P.O. Box 21000
Cheyenne, Wyoming 82003
307-632-7733



P.O. Box 100
Burns, Wyoming 82053
307-547-3535

September 30, 15

To whom it may concern:

Central Enterprises Inc. has an active account with our bank and is a customer in good standing.

Best regards,

A handwritten signature in blue ink, appearing to read 'Jeff Wallace', is written over a horizontal line.

Jeff Wallace
CEO

**Central Enterprises Inc.
Application for Retail Liquor License
Executive Summary**

Attachment C – Legal Description

Legal description - 1701 Carey Avenue

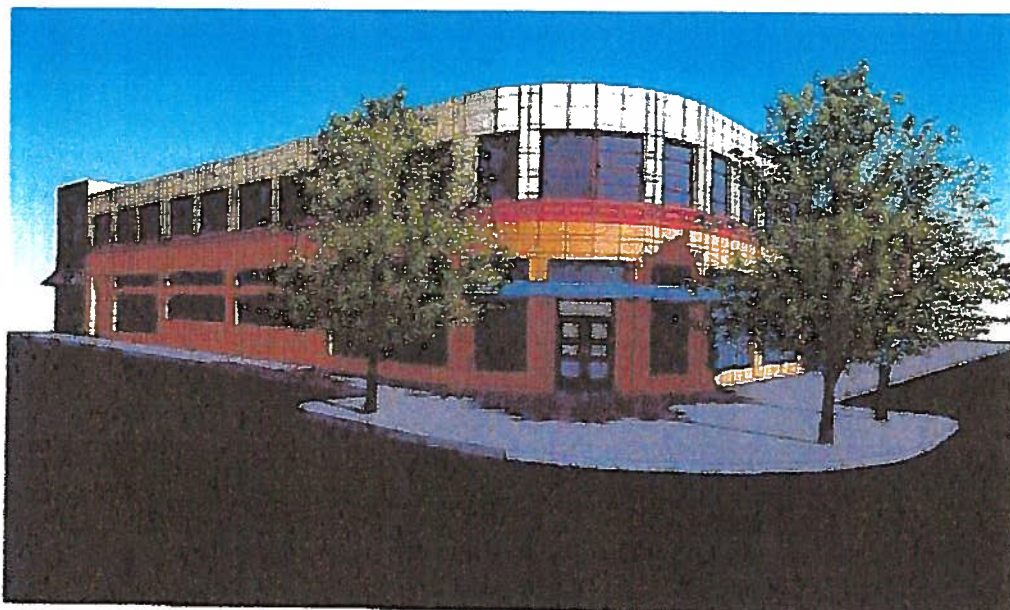
WEST 31' OF SOUTH 112' 10", EAST 12' 5 1/2" OF WEST 43' 5 1/2" OF SOUTH 114' 10" OF LOT 5, BLOCK 355 MORE PARTICULARLY DESC AS: BEG AT THE SOUTHWEST COR OF LOT 5 AND THENCE RUNNING EASTERLY ON THE SOUTH LINE OF LOT 5, 43' 5-1/2"; TH NORTHERLY PARALLEL WITH THE WEST LINE OF LOT 5, 114' 10"; TH WESTERLY ON A LINE PARALLEL WITH THE SOUTH LINE OF LOT 5, 12' 5-1/2"; TH RUNNING SOUTHERLY ON A LINE PARALLEL WITH THE WEST LINE OF LOT 5, 2'; TH RUNNING WESTERLY ON A LINE PARALLEL WITH THE SOUTH LINE OF LOT 5, 31' TO THE WEST LINE OF LOT 5; TH RUNNING SOUTHERLY ALONG THE WEST LINE OF LOT 5, 112' 10" TO THE SOUTHWEST COR OF LOT 5, WHICH IS THE POB.

**Central Enterprises Inc.
Application for Retail Liquor License
Executive Summary**

Attachment D – Current Exterior



Attachment E – New Exterior

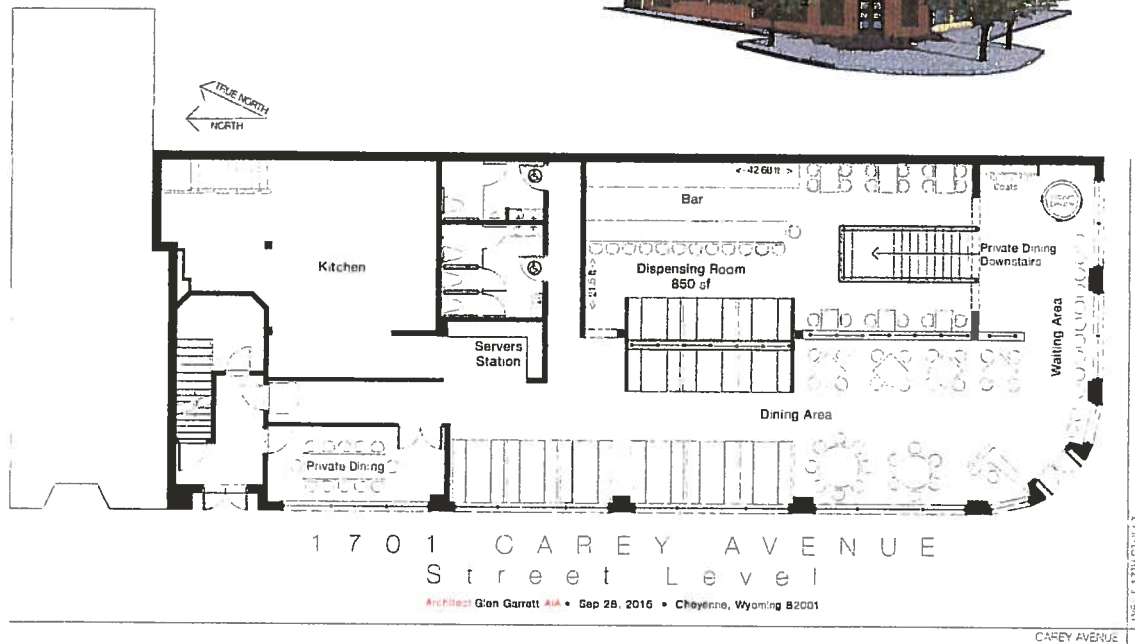


**Central Enterprises Inc.
Application for Retail Liquor License
Executive Summary**

Attachment F – Conceptual Floor Plan

CENTRAL ENTERPRISES INC.,
1702 CAREY AVENUE
CHEYENNE, WYOMING 82001

CONCEPTUAL PLAN
APPLICATION FOR CITY OF CHEYENNE RETAIL LIQUOR LICENSE
SEPTEMBER 30, 2015

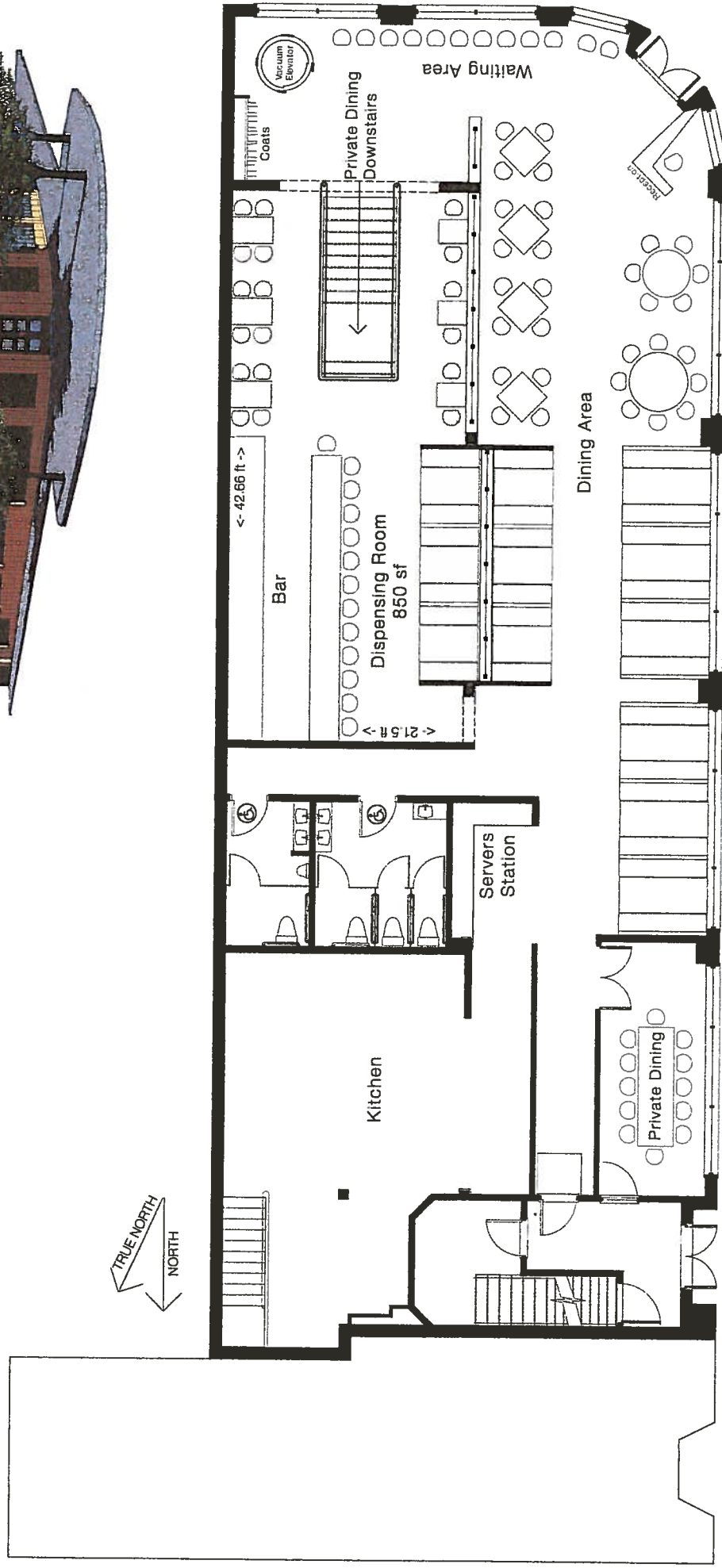
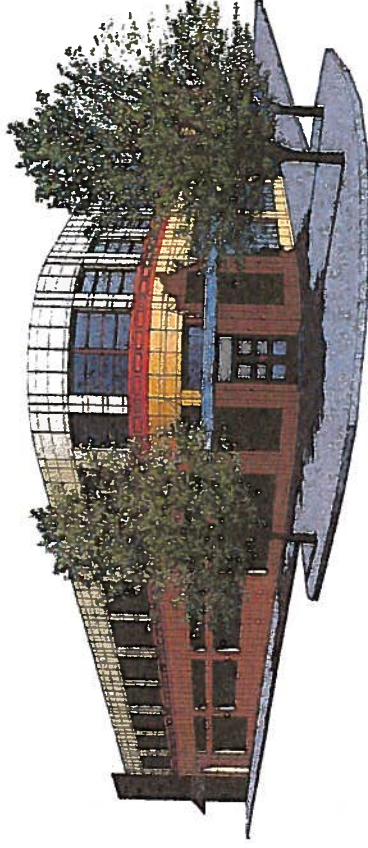


CENTRAL ENTERPRISES INC.

1702 CAREY AVENUE
CHEYENNE, WYOMING 82001

CONCEPTUAL PLAN

APPLICATION FOR CITY OF CHEYENNE RETAIL LIQUOR LICENSE
SEPTEMBER 30, 2015



1701 CAREY AVENUE
Street Level

Architect Glen Garrett AIA • Sep 28, 2015 • Cheyenne, Wyoming 82001

WEST 17TH STREET

CAREY AVENUE

COMMERCIAL LEASE

THIS LEASE made and entered into this 15th day of September, 2015 at Cheyenne, Wyoming, by and between Otis Investments, LLC, a Wyoming limited liability company, hereinafter called "Lessor", and Central Enterprises Inc., a Wyoming corporation, hereinafter collectively called "Lessee".

WITNESSETH:

WHEREAS, Lessor owns the real property and building located at 1701 Carey Avenue, Cheyenne, WY 82001 which may hereinafter be called the "Property."

WHEREAS, The Property is comprised of several suites which herein are referred to as the "Premises".

WHEREAS, Lessor desires to lease the Premises known as 1701, on the terms and conditions hereinafter set forth.

NOW, THEREFORE, it is mutually agreed between the parties hereto as follows:

1. **DEMISE AND TERM.** Lessor hereby leases to Lessee, and Lessee hereby rents from Lessor, 1701 (the Premises) for a term of 5 year(s) commencing on October 1, 2015. The Premises shall consist of 9000 sq. ft. located on the first floor and basement of the building at 1701 Carey, Cheyenne, WY. Lessee shall have the right to delay the commencement date of this Lease up to 90 days based upon its acquisition of a City of Cheyenne retail liquor license. Lessor shall have the right to terminate this lease should Lessee fail to obtain a City of Cheyenne retail liquor license by January 31, 2016.

2. **LIQUOR SERVICE.** Lessor acknowledges that alcoholic beverages will be dispensed and consumed on the Premises during the term of the Lease and Lessor does not object thereto.

3. **RENT AND SECURITY DEPOSIT.** Lessee shall pay as rent for the Premises, the total sum of _____ payable in monthly installments of \$ _____, each installment being paid in advance on the first day of each and every month during the term hereof beginning with the month of October. Any payment received more than 10 days after the due date shall have added thereto a late payment penalty equal to 10% of the payment. At the time of execution of the lease the Lessee shall also pay a damage and security deposit in an amount equal to one month's rent. Such deposit shall be returned within 30 days of the expiration of the lease provided i) all payments are current; ii) the premises are appropriately and thoroughly cleaned (which shall include all carpets being professionally cleaned); and iii) there is no un-repaired damage to the premises normal wear and tear excepted.

4. **QUIET ENJOYMENT.** Lessor warrants that it is the owner of the premises and has full right and authority to enter into this Lease. Lessor covenants that, for and during the term of this Lease, it will not cause or allow anything to be done which will impair Lessee's leasehold interest and rights hereunder. Lessor shall defend the Lessee in the enjoyment and peaceful possession of the premises during all terms of this Lease.

5. **USE OF PREMISES.** Lessee shall, in the conduct of its business on premises, at Lessee's expense, comply with and carry out all applicable laws, ordinances, regulations and orders of public authority. Lessee shall, at its expense, comply with and carry out all applicable laws, ordinances, regulations and orders of public authority respecting the structure and other conditions of the premises. No smoking will be observed at all times within the leased premises.

6. **CONDITIONS OF PREMISES.** Lessee's entry into possession of the Premises shall be deemed its acceptance of the Premises in good order, condition and repair. Upon termination of this Lease, whether by lapse of time or otherwise, Lessee shall immediately yield up possession, and surrender same to Lessor, with the leased Premises in a good state of repair and condition.

7. **UTILITIES AND OTHER EXPENSES.** Lessee shall contribute 95% of the carrying costs for the Property which shall include, without limitation, maintenance of the grounds and building, snow removal, taxes, water, and insurance associated with the Property. At such time as the expenses are known, Lessor shall furnish Lessee with an accounting of such expenses. Lessee shall be exclusively responsible for cleaning, janitorial, internet, water, gas, electricity, telephone and sanitation services of the leased Premises.

8. **REPAIR AND MAINTENANCE.** Lessee shall, at its expense, keep and maintain the Premises in a clean, neat, sanitary order and in good condition and repair during the occupancy of Lessee. Lessee shall not cause or permit any waste or nuisance in or about the Premises. Any major repairs shall be primarily the responsibility of Lessor.

9. **ACCESS.** Lessor, and its duly authorized agents, after notice to Lessee, shall have access to the Premises at all reasonable times for the purpose of inspecting the same and to make any changes or alterations it may consider appropriate for the protection of the building or to render it and its appurtenances safe.

10. **LIENS.** Lessee agrees and covenants that it will not cause or suffer the creation of any mechanic's liens, or other liens, for any labor performed or materials furnished for or on behalf of Lessee, which may cloud or impair Lessor's title to the leased Premises; and that if any such lien shall arise due to an act or omission of Lessee, Lessee shall promptly remove the same at its own expense.

11. **NON-LIABILITY.** Lessee hereby waives any and all claims against Lessor or Lessor's agents or employees for any loss of, or damage to, personal property

or for any injury sustained on or about the Premises arising from any event, except any loss, damage or injury that is directly caused by the negligent act of Lessor, Lessor's agent, or Lessor's employees.

12. **ALTERATIONS.** Lessee shall not make any alterations to the Premises, or any part thereof, without the consent of Lessor. Any addition to, or alterations of, the Premises shall become part of the realty and belong to Lessor; provided that nothing herein shall affect Lessee's rights with respect to trade fixtures and other movable property belonging to Lessee. Lessee shall, at its expense, repair any damage caused to the Premises by the removal of its personal property.

13. **DESTRUCTION OF PREMISES.** In the event that the Premises shall be rendered unfit to a material extent for use by Lessee due to fire, earthquake, flood, windstorm or other casualty, the rent payable under this Lease shall abate during the time such damage remains unrepaired. Lessor shall promptly proceed to repair the damage due to such casualty. If such damage cannot be repaired within 30 days from the date of damage because of its extent or the impossibility to obtain materials, labor, or due to governmental restrictions, strikes or other events beyond the control of Lessor, Lessor shall promptly notify Lessee in writing of such fact and Lessee shall then have the option to terminate this Lease forthwith. If Lessee notifies Lessor that he does not elect to exercise this option to terminate, Lessor shall arrange and proceed to repair such damage as soon as reasonably possible.

14. **CONDEMNATION.** In the event that the Premises, or a substantial part thereof, shall be condemned or taken by public authority, Lessee shall have the election to terminate this Lease. In the event of a partial condemnation or taking, and if Lessee continues its use and occupancy of the portion not so condemned or taken, the fixed rent payable hereunder shall be reduced by the proportion that the value of the condemned portion of the Premises bears to the total value of the Premises. Lessee shall, in any event, be entitled to claim compensation from the public authority concerned for the loss of, or damage to, its leasehold interests hereunder and its equipment and other property on the Premises by seeking a separate award of compensation.

15. **ASSIGNMENT.** Lessee may not assign this Lease.

16. **SUBLET.** Lessee shall not have the right to sublet the Premises for any purpose.

17. **INSURANCE.** Lessee shall procure and keep in force, at all times, during the term of this Lease at Lessee's expense, public liability insurance in an amount of not less than two million dollars for personal injury to any one person, two million dollars for personal injuries arising out of any one accident, and two million dollars property damage. Lessor shall be named as an additional insured party. When requested by Lessor, Lessee shall furnish Lessor with certificate, or certificates, issued by the insurance carrier evidencing such insurance. Lessee shall also keep and maintain all risk property insurance on their own property kept on the Premises.

18. **INDEMNITY.** Lessee shall reimburse and hold Lessor harmless from any claim by, or liability to, any third person arising from the use of the Premises by Lessee, or any licensee, customer or contractor of Lessee, provided that such loss, damage or injury did not result from a negligent or wrongful act of Lessor.

19. **NOTICE.** Any notice required herein shall be sent by certified or registered mail. Notice to the Lessor shall be addressed to Otis Investments, LLC 8827 Shellback Rd., Cheyenne, WY 82009, and notice to the Lessee shall be to 1701 Carey Avenue Cheyenne, WY 82001. Upon notice to the other party either party may change the address to which notice to it is to be sent. Notice shall be deemed to have been given when properly mailed.

20. **REMEDIES.** In case the Lessee shall fail or neglect to keep and perform any of the covenants or agreements in this Lease contained on the part of the Lessee to be kept and performed, the Lessor, in addition to all other remedies now or hereafter afforded or provided by law, may at its election perform such covenant or agreement for or on behalf of the Lessee or make good any such default, any amount or amounts which the Lessor shall advance on that behalf shall be repaid by the Lessee to the Lessor on demand, together with interest thereon at the legal rate, from the date of such advance to the repayment thereof in full, and if the Lessee shall not repay any such amount or amounts upon demand, the Lessor may terminate this lease pursuant to its terms.

In case of any default in any payments to Lessor or others required by this lease to be made by Lessee, this lease may be terminated by Lessor by written notice without prior notice or demand. In the event of any other default by Lessee, Lessor shall provide written notice to Lessee and Lessee shall have ten days (10) from the date of mailing of such notice to cure such default. In the event the default is not cured timely Lessor, at its election, may terminate the lease with notice to Lessee in writing. Lessor may in the alternative pursue Lessee for any amounts in default and may pursue these or any other remedies available at law. In the event Lessor institutes collection actions whether requiring the filing of suit or otherwise, Lessee shall, in addition to the amounts due under the lease, be required to pay all costs of collection including but not limited to all costs and attorneys fees.

21. **WAIVER.** No waiver by Lessor of any breach or default by Lessee in the performance of any of the provisions, agreements or covenants hereunder shall be construed as a waiver of such provision, agreement or covenant or of any other or subsequent breach thereof.

22. **HOLDING OVER.** In the event Lessee continues to occupy the Premises after the last day of the term of this Lease or the extended term and Lessor elects to accept rent thereafter, or otherwise consents to such continued occupancy, a tenancy from month-to-month shall be created at the same rental plus 20% as herein provided, computed on a monthly basis, and on the terms and conditions of this Lease so far as applicable.

23. **NOTICE OF EXTENTION OF LEASE.** In the event Lessee desires to renew or extent this lease, Lessee shall provide notice to Lessor of such desire at least 90 days but not more than 120 days prior to the termination date of this lease. Notwithstanding this section, Lessor shall not be required to undertake any extension of this lease. If no notice is timely given pursuant to this section this lease shall terminate on the termination date. On such date Lessor may remove the property of Lessee to a suitable storage facility all at Lessee's expense and re-let the Premises.

24. **ACCESS OF LESSOR FOR PROSPECTIVE TENANTS.** At any time during the normal business hours during the last sixty (60) days of this tenancy, or any extension thereof LESSOR shall have the right to enter the Premises for the purpose of exhibiting the same to prospective tenants.

25. **MODIFICATION.** Lessor and Lessee agree that this Lease contains the entire agreement between them and shall not be modified in any manner except by an instrument in writing signed by each of them.

26. **BINDING.** The terms of this Lease shall become binding upon the successors, administrators, executors, heirs and assigns of the parties hereto.

IN WITNESS WHEREOF, the parties hereto have hereunto set their hands at Cheyenne, Wyoming, the day and year first above written.

LESSOR: Otis Investments, LLC

By:

A handwritten signature in blue ink, appearing to be "J. E. Parks", is written over a horizontal line.

LESSEE: Central Enterprises Inc.

By:

A handwritten signature in blue ink, appearing to be "J. E. Parks", is written over a horizontal line.